

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

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DAMION DENTON,

Plaintiff,

-against-

Index No.:

**THE CITY OF NEW YORK, POLICE OFFICER
MICHAEL K. DUNN (Tax Id #: 955894) and
POLICE OFFICER ROBERT KULLAK (Tax Id #:
966143),**

VERIFIED COMPLAINT

Defendants.

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Plaintiff, DAMION DENTON, by his attorneys, GUERCIO & GUERCIO, LLP, complaining of Defendants, THE CITY OF NEW YORK (hereinafter referred to as “City”), POLICE OFFICER MICHAEL K. DUNN (Tax Id #: 955894) (hereinafter referred to as “Dunn”) and POLICE OFFICER ROBERT KULLAK (Tax Id #: 966143) (hereinafter referred to as “Kullak”), and alleges as follows:

Parties

1. Plaintiff resides in the State of New York, County of Richmond.
2. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK (hereinafter the “City”), was and still is a municipal corporation organized and duly existing under and pursuant to the laws of the State of New York.

NYPD Defendants

3. At all times hereinafter mentioned, Defendant, City, maintained a Police Department, the employees of which act as its agents in the area of law enforcement.
4. At all times hereinafter mentioned, Officer Dunn was a police officer with the New York Police Department (hereinafter “NYPD”).

5. At all times hereinafter mentioned, Officer Kullak was a police officer with the New York Police Department (hereinafter “NYPD”).

6. At all times hereinafter mentioned, Officer Dunn was acting within the scope of his employment as a police officer with the NYPD.

7. At all times hereinafter mentioned, Officer Dunn was acting under color of state law.

8. At all times hereinafter mentioned, Officer Kullak was acting within the scope of his employment as a police officer with the NYPD.

9. At all times hereinafter mentioned, Officer Kullak was acting under color of state law.

10. At all times hereinafter mentioned, Officer Dunn is sued individually and in his official capacity.

11. At all times hereinafter mentioned, Officer Kullak is sued individually and in his official capacity.

CONDITIONS PRECEDENT

12. That on or about December 28, 2023, plaintiff filed and served a Notice of Claim.

13. That more than thirty (30) days have elapsed since the service of the Notice of Claim and adjustment or payment thereof has been neglected or refused.

14. On or about September 18, 2024, plaintiff testified at an examination pursuant to General Municipal Law Section 50-h with respect to the Notice of Claim.

15. That this action is brought within one (1) year and ninety (90) days from the date that the claims accrued.

16. That Plaintiff has complied with all conditions precedent applicable to the instant action.

17. That this action falls within one or more of the exceptions of CPLR 1602, including, but not limited to CPLR 1602(11).

18. That Venue is proper based upon where the action accrued.

THE FACTS

19. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

20. That on or about October 3, 2024, at approximately 9:40 p.m., plaintiff was lawfully present in front of 115-17 172nd Street, Queens, New York, when he was pulled over by members of the NYPD, including Officers Dunn and Kullak.

21. That Officers Dunn and Kullak claimed they pulled plaintiff over because they observed plaintiff run a red light at the intersection of Merrick Boulevard and 115th Avenue in Queens, New York.

22. That Officer Dunn ordered plaintiff to step out of his car and stand at the rear of the car. Plaintiff was then seized and searched by members of NYPD, including by Officers Dunn and Kullak.

23. That Officer Kullak searched plaintiff's car without a warrant or probable cause or reasonable suspicion to believe that plaintiff had committed any crimes or violation or was about to commit any crime or violation.

24. That Officer Kullak searched plaintiff's car without plaintiff's consent.

25. That members of the NYPD handcuffed and arrested plaintiff. Plaintiff repeatedly complained that the handcuffs were too tight, but members of the NYPD refused to loosen the handcuffs.

26. That because of the tight handcuffing, plaintiff suffered injuries to his shoulder and wrists.

27. That at all times herein mentioned, Officers Dunn and Kullak, acted jointly and in concert with one another in connection with the stop, search, seizure, handcuffing and arrest of plaintiff.

28. That Officers Dunn and Kullak, each had reasonable opportunities to intervene to prevent and/or stop that conduct, and each deliberately and intentionally failed and refused to do so.

29. That the actions of Officers Dunn and Kullak were intentional.

30. That as a result of the actions of Defendants and the officers, plaintiff suffered significant injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, was deprived of his liberty, lost employment and other economic loss, suffered physical injuries, and has been otherwise damaged.

FIRST CAUSE OF ACTION AGAINST DEFENDANTS

(Assault and Battery Under NY State Law)

31. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

32. That plaintiff was assaulted and battered by Defendant City, through its police officers.

33. That the aforementioned actions of Defendants were willful, and wanton and Defendants acted with reckless disregard for the consequences of their actions.

34. That as a result of plaintiff's assault and battery, plaintiff was caused to suffer personal injuries, violation of civil rights, physical injuries, emotional distress, anguish, anxiety, fear, humiliation, among other injuries.

SECOND CAUSE OF ACTION AGAINST DUNN and KULLAK

(42 U.S.C. § 1983: Fourth and Fourteenth Amendment Violations)

35. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

36. That the aforesaid actions by Officers Dunn and Kullak in stopping, seizing, assaulting and battering plaintiff, using excessive force, and searching plaintiff and his car constitute unreasonable and illegal seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

THIRD CAUSE OF ACTION AGAINST DUNN and KULLAK

(42 U.S.C. § 1983: Failure to Intervene)

37. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

38. That the aforesaid actions by Officers Dunn and Kullak in failing to intervene to prevent and/or stop the aforesaid improper conduct by his fellow officers entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FOURTH CAUSE OF ACTION AGAINST THE CITY

(Negligent Hiring, Training, Supervision and Retention)

39. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

40. That the aforesaid actions by the officers and the resulting injuries to plaintiff followed and were the result of the negligence of the City in its hiring, training, supervision, and retention of the individual defendants.

FIFTH CAUSE OF ACTION AGAINST DEFENDANTS

(Intentional Infliction of Emotional Distress)

41. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

42. That the aforesaid actions by the individual defendants constitute intentional infliction of emotional distress of plaintiff, as the individual defendants conduct was extreme and outrageous and caused Plaintiff severe emotional distress, for which the individual defendants are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION AGAINST ALL DEFENDANTS

(NYC Administrative Code § 8-802)

43. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

44. That the aforesaid actions by Defendants constituted unreasonable searches and seizures and uses of excessive force in violation of Plaintiff's rights pursuant to NYC Administrative Code § 8-802, and entitle Plaintiff to recover monetary damages under NYC Administrative Code § 8-803.

45. That all of the causes of action herein fall within one or more of the exceptions in CPLR Article 16 with respect to joint and several liability.

JURY DEMAND

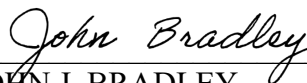
46. Plaintiff demands a trial by jury on all causes of action.

WHEREFORE, Plaintiff demands judgment against defendants on the foregoing causes of action in the form of compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against defendants Dunn and Kullak in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorneys' fees against defendants Dunn and Kullak pursuant to 42 U.S.C. § 1988, and the costs and disbursements of this action.

Dated: Farmingdale, New York
October 2, 2024

Yours, etc.

GUERCIO & GUERCIO, LLP
Attorneys for Plaintiff



JOHN J. BRADLEY
77 Conklin Street
Farmingdale, NY 11735
(516) 694-3000

VERIFICATION

JOHN J. BRADLEY, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff is that plaintiff does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff's file maintained by your affirmant's office.

Dated: Farmingdale, New York
October 2, 2024



JOHN J. BRADLEY